

The Ohio Gym - Sheffield

5248 Cobblestone Rd
Sheffield Village, OH 44035
(440)934-7440



Membership Agreement

THIS IS A MEMBERSHIP AGREEMENT between The Ohio Gym (the "Club") and you, the undersigned client. The Club is agreeing to finance your Membership Agreement based upon the terms and conditions contained in this Agreement. By signing below, you represent to The Club that you are at least 18 years of age and, that you have read and understand this Agreement, and that you agree to its terms.

LAST NAME	FIRST NAME	MID INITIAL	TODAY'S DATE	
Lowe	Rick		12/16/2024	
STREET ADDRESS	APT #	CITY	D.O.B.	EMAIL
401 Nebraska Ave		Lorain	02/07/1971	rickalowe@hotmail.com
STATE	ZIP	GENDER	HOME PHONE #	CELL PHONE #
OH	44052	U		(440)522-2722
EMERGENCY CONTACT NAME	EMERGENCY CONTACT #	SOURCE	CLUB CODE	
Richard	(440)282-8269	Drive By	OG03	

Membership Privileges, Notices, Disclosure & Agreements

10272	007188827G	Gym Membership
Barcode	Member Number	Membership Description

SEMI-ANNUAL ENHANCEMENT FEE: Due January 5th & July 5th

Member is responsible for the semi-annual fee of \$0.00 on January 5th & July 5th of each year for the life of the membership. The purpose of the semi-annual health club ("Health Club") enhancement fee is to maintain the equipment and services provided by the facility(s). This fee will automatically be collected through the members' current means of billing with the monthly dues payment. By initiating in the box provided, I am acknowledging that I have read and agree to these conditions.

Member Initials _____

CANCELLATION

Member may maintain their most current rate by staying current with monthly dues, and as long as member does not cancel agreement. Membership may be cancelled at any time while not under a contractual Agreement with a 31-day written notice, completed at the gym or by sending certified mail, return receipt requested and \$19 cancellation fee.

Member Initials _____

RELEASE OF LIABILITY/ASSUMPTION OF RISK/BUYERS RIGHT TO CANCEL

LIABILITY WAIVER: It is expressly agreed that all use of the fitness facilities shall be undertaken by a member at his or her own risk, and the Seller shall not be liable for injuries or damages to any member or guest, or to the property of any member or guest that may be subject to claim, demands, injuries, or damages whatsoever, including without any limitations, those damages resulting from acts of active or passive negligence on part of Seller, its successors or assigns, as well as its officers and agents, for all such claims, demands, injuries, damages, actions or causes of action. It is especially agreed that the Seller shall not be responsible or liable to members or their guest for articles lost or stolen in the club. The Seller also shall not be responsible or liable for loss or damage to any other property, member or their guests, including their automobiles and contents. It's also agreed that any damages to the club facilities or property, or the property of any member by another member or his guest, is the sole responsibility of the member. I am responsible for any damages caused by me to the facilities and equipment. Member

BUYERS RIGHT TO CANCEL: You may cancel this contract at any time prior to midnight on the third business day after the date of this contract. To cancel, you must notify The Ohio Gym - Sheffield-5248 Cobblestone Rd. Sheffield Village, OH 44035 by certified mail or signing a cancel form at the gym in person, no later than midnight of 12/19/2024. For purposes of this contract, "business days" means any and all days other than Saturdays, Sundays federally recognized Holidays and days in which this facility is not opened to you, the Buyer. Cancellation occurs when you, the Buyer, give us written notice of cancellation at our address stated in the contract. Notice of cancellation, if given by certified mail, is given when it is deposited in the United States Mail properly addressed at the above address with postage prepaid. Notice of cancellation need not take particular form and will be sufficient if it is indicated by any form of written expression of your intention not to be bound by the contract

NOTICE: Any holder of this Agreement is subject to all claims and defenses which the debtor could assert against the seller of goods or services obtained pursuant hereto or with the proceeds hereof, recovery hereunder by the debtor shall not exceed amounts paid by the debtor hereunder.

NOTICE TO BUYER: (a) DO NOT SIGN THIS CONTRACT BEFORE YOU READ IT. (b) YOU ARE ENTITLED TO AN EXACT COPY OF THE PAPER YOU SIGN. YOU HAVE RECEIVED A COMPLETED COPY OF THIS CONTRACT WITH DISCLOSURES MADE IN COMPLIANCE WITH FEDERAL AND STATE LAW.

ELECTRONIC FUNDS TRANSFER AUTHORIZATION

PARAMOUNT
ACCEPTANCE

REQUEST FOR PREAUTHORIZED PAYMENT PLAN
I/We hereby request the privilege of paying to Paramount Acceptance, Holladay, UT 84117, under the Company's Preauthorized Payment Plan and hereby request the Company to draw items (checks, electronic fund transfers, charge card) for the purpose of paying said payments, including any late fees or service fees, on the account of

Rick Lowe

(Name as shown on account)

Subject to the following conditions:

No banking information provided

- The items shall be drawn on or about the date or dates of the Payment Schedule. The transactions on your bank statement will constitute receipts for payment on your account.
- If the regular payments set forth on the Payment Schedule should vary in amount, you are entitled to notice at least 10 days before each payment of when it will be made and how much it will be. However, by executing this preauthorization, you choose to instead get this notice only when the payment would differ by more than \$50 from the most recent payment.
- By executing this agreement, you acknowledge your awareness that certain disclosures required by the Electronic Funds Transfer Act and its regulations are available for your review at the Company's web site www.paramountacceptance.com under terms and conditions.
- The privilege of making payments under this arrangement may be revoked by the Company if any item is not paid upon presentation.
- If this preauthorization payment arrangement is revoked for any reason, this does not release you from your obligation (Payment Schedule).
- A service fee will be assessed and drafted for insufficient funds or any other return reason. A late fee will be assessed and drafted should any monthly payment become past due. These fees may be assessed up to the maximum amount allowed by the state.
- This preauthorization payment arrangement shall apply to the following Applicant(s): Rick Lowe

Date: 12/16/2024

Customer Signature _____

(Signature required only if name on account is different than member)

Membership Begins:	12/16/2024
Membership Expires:	12/16/2025
Enrollment Fee:	\$0.00
Processing Fee:	\$0.00
First Months Dues:	\$0.00
Last Months Dues:	\$0.00
Tax:	\$23.92
Down Payment:	\$322.92

PAYMENT SCHEDULE

Num. of Payments	First Due Date	Payment Amount
0		\$0.00

DEFAULT AND LATE PAYMENTS: Should you default on any payment obligation as called for in this agreement, the club will have the right to declare the entire remaining balance due payable and you agree to pay allowable interest and all costs of collection including but not limited to collection agency fees, court costs, and attorney fees. A default occurs when any payment due under this agreement is more than ten days late. Should any monthly payment be more than ten days past due, you will be charged a late fee. An additional service fee will be assessed for any check, draft, credit card, or order returned for insufficient funds or any other reason. If the Member is paying monthly dues by electronic funds transfer (EFT), the club's billing company, Paramount reserves the right to draft via EFT all amounts owed by the member including any and all late fees and service fees. NOTE: Members paying monthly dues by EFT are subject to \$10.00 per month increase of monthly dues if EFT payment is stopped or changed. This will not affect any other provision of this agreement.

AGREEMENT

Member Signa

Date: 12/16/2024

Employee Signature: EDDIE SIKORA 000091339E

Date: 12/16/2024

Parent/Guardian Signature: _____

Date: 12/16/2024

REQUIRED FOR ALL
EFT AND CREDIT CARD
DRAFT ACCOUNTS

TERMS AND CONDITIONS

CONSENT TO CONTACT: By signing below, you are giving The Ohio Gym and its authorized vendors consent to contact you by email to the email address as set forth on the face of this Agreement, or by text message or telephone at the number provided for any matter related to your account, including collection of monies owed, alerts and/or notices regarding your purchased services, and promotions that may be of interest to you. You expressly consent to receive autodialed and/or prerecorded messages from or on behalf of The Ohio Gym and its authorized vendors at the phone number _____, as applicable (standard text rates apply). Your consent is not a condition of purchase.

Member



PROMISE TO PAY: You promise to pay Us or to Our order, your Cash-Down payment, and the Total Payments according to your payment schedule shown above. You shall make your payment to us at the address shown above unless we notify you in writing to make your payments to a different address.

CANCELLATION POLICY: If you meet the terms of this agreement and/or if your contract is a month-to-month membership, you may cancel at any time with a 31-day written notice and \$19.00 cancellation fee: You understand that during the cancellation process you may be charged for any and all unpaid balances up to the cancellation date. Further, if your account is not in good standing, you understand that your account will be required to be current before a cancellation request can be accepted.

BUYERS RIGHTS: You may also cancel this contract if the following occurs with a thirty-one-day written notice and \$19.00 cancellation fee.

- a) You (the buyer) have three (3) business days to cancel this contract. To cancel, certified mail or deliver a letter to follow address:
The Ohio Gym - Sheffield - 5248 Cobblestone Rd Sheffield Village, OH 44035
- b) You may also cancel if because of death or permanent disability, you may become unable to use any position of the gym's facilities or services. In the event of medical disability, you must provide the gym with a doctor's statement.
- c) Your estate may cancel in the event of your death.

WARNING: If you have a history of heart-related disease, you should consult a physician before purchasing membership and joining the club. A person entitled to membership privileges under the Contract who has a history of heart-related disease should consult a physician before utilizing the programs and facilities of the Seller.

PROCESSING FEE: You will be charged a processing fee set forth on the front of the contract to recoup the cost of processing your application. Processing cost can include commissions, postage and handling, data entry, key tags, and other administrative expenses. These fees are non-refundable even if you choose to cancel your membership.

FACILITY IMPROVEMENT AND SERVICE ADDENDUM: You understand that periodically, as set forth on the front of this contract, you will be required to pay a facility improvement and service addendum fee. These fees are non-refundable and fully earned on the date they are billed. Facility improvement and Service Addendum fees may be used for the ongoing operational upkeep of the facility, servicing of debt of leased equipment, purchasing new equipment, lease-hold improvements, maintenance of equipment, and/or any operational expense as required to maintain and improve the facility. The seller of this contract can elect to use the fee at its sole discretion towards these expenses. Facility Improvement and Service Addendum are Non-Refundable.

LAW APPLICABLE: Ohio law governs this contract.

INVALID PROVISION: If any provision of this Contract is found to be invalid or unenforceable, the remainder of the Contract will be valid and enforceable.

ENTIRE AGREEMENT: If there is more than one of you signing this Contract, each of you is individually responsible to fully perform all obligations under this Contract. We are not responsible for notifying you of late payments, or any default proceedings. This agreement constitutes the entire agreement of the parties, and there are no representations, warranties, covenants, or undertakings other than those set forth herein.

NO WAIVER OF RIGHTS: We do not waive our right to have future payments made when due if we accept late or partial payment or delay the enforcement of our rights on any occasion.

APPLICATION OF PAYMENTS: We will apply all payments received to pay the installments (including late charges, if any) in the order in which they are scheduled to be paid. The Seller shall be entitled to see, transfer, discount, or assign this agreement to a financial institution or other entity without consent of buyer.

DISHONORED CHECK FEE: If a check, draft or order for the payment of money on any bank or other depository submitted by you to Seller as payment is not honored by the bank, then Seller may add a fee to the unpaid balance under the Contract.

DEFAULT: You are in default if:

- a) We do not receive installment payment from you on or before the Due Date; or
- b) You fail to fulfill one or more of your obligations or promises under this Contract including full compliance with Club Rules and Regulations; or
- c) Insolvency actions are begun by or against you; insolvency includes situations where you are unable to pay all your debts as they become due.

ACCELERATION OF PAYMENTS: If you are in default as herein provided above, we can demand immediate payment of all unpaid installments.

ATTORNEY'S FEES AND COURT COSTS: If your failure to pay any one or more of the installments due under this Contract results in Seller's retaining an attorney for collection proceedings, you shall pay reasonable attorney's fees (15% if not prohibited by law) and court costs allowed by law).

RULES AND REGULATIONS

I understand that violation of the rules may cause my membership in the club to be immediately terminated at the discretion of Seller. In the event of termination of my membership by Seller for rule violations, my liability for any payment occurring after the date of my membership termination shall cease. The seller reserves the right to make additional rules and regulations.

1. **HOURS OF OPERATION:** Operating schedules will be subject to change from time to time, according to periodic posting at the club. The club may be closed on Sundays, holidays and from December 15 through January 1. The Club may be available to men and women on alternate days or at alternate times of day in club's sole discretion, subject to change by management.
2. **SIGNING IN/MEMBERSHIP CARD:** All members upon entering the club are required to Check-In at the main counter, they may be required to print their names and show their membership cards. Members may be required to furnish other suitable identification as requested by club personnel to gain entrance. In the event that a member claims that his or her membership card has been lost, stolen, or destroyed, club may require documentation setting forth the relevant circumstances and payment of a service fee before issuing a replacement card and such service fee shall be subject to change by club. Member shall be responsible for surrendering his or her membership card (including family member cards) within thirty (30) days prior to each anniversary date of membership (unless membership privileges terminate upon such date), whereupon new membership cards will be issued by club. Club may change renewal fee for such purpose, which fee shall be subject to change by club.
3. **MAY I BRING A GUEST?** We would love to have your friend or family visit us. There is a \$10.00 Guest Fee if the guest is accompanied by a member. Other guests are welcome, the fee is \$15.00 for the day.
4. **EXERCISE CLOTHING:** Men and women are required to always wear soft soled gym shoes in the exercise area. Blue jeans are not allowed to be worn when exercising. Appropriate exercise clothing should be worn while exercising in the gym.
5. **COURSE INSTRUCTION:** All courses will be outlined and taught during a member's initial visits to the club. Any variation from prescribed programs will be taken at the member's own risk. Members agree to follow an exactly regulated and prescribed course without supervision.
6. **TIME USE OF EQUIPMENT:** Member agrees to follow designated time use of all machines exactly as prescribed. Maximum time used will be allowed on certain special machines.
7. **EQUIPMENT MALFUNCTIONS:** Member understands that equipment may, from time to time, be out of order. When special factory parts must be ordered some units may be out of order for several weeks. When this occurs, the member agrees to follow a regulated substitute program.
8. **SAFETY FIRST REGULATIONS:** Member will not start a machine or other devices until in position and will follow treatment exactly as prescribed by an instructor.
9. **UNAVAILABILITY OF FACILITY OR SERVICES:** There shall be no right of abatement of the running of the special term of membership for any reason whatsoever. Failure to attend and use the facility will not relieve members of any liability for payments and amounts due. Should the facilities or all of the services no longer be available at the location at which the member enrolls due to any reason including, but not limited to, condemnation, loss of lease, act of God, catastrophe, or for any other reason, the club will have the right, at its option, to extend member's membership for a period of time of such unavailability, or, at the club's option, member may be transferred to another "similar health club facility" within the same metropolitan area. In connection therewith, members agree that the club's decision if a location is closed permanently, the club will make every reasonable attempt to provide members with another "similar health club facility" within the same metropolitan area.
10. **NO CHILDREN ALLOWED:** No children will be allowed on the premises, except children in the day care center. Children shall be defined to mean any person under the age of 14. In the club's sole discretion, the age may change, without recourse by member.
11. **COMPLIANCE WITH RULES AND CONDUCT OF MEMBER:** Member agrees to be subject to the control and guidance of the club staff while on the premises and will follow instructions of club personnel. Members agree to conduct him or herself in a quiet, well-mannered fashion while on the premises and reserve all criticism of any major kind about other club members, guest, or club personnel until in a private off with the club manager. Member agrees to obey all rules and conditions of membership contained in this contract or in the future prescribed by the club reserves the right to revoke or terminate the membership if the member fails to keep an obey any of such rules and conditions.
12. **USE OF FACILITY BY MEMBERS:** Buyer agrees and represents on behalf of himself/herself and all family members that all exercises, treatments and use of all club facilities shall be undertaken at each member's own risk, that each member is in good physical condition and physically able to undertake any and all physical exercises and treatments provided by the club, and that the corporation which owns the club and/or any companies and/or their respective agents and employees shall not be liable for any claims, demands, injuries, damages, actions, or causes of action to members or their property, which arise wholly or partially due to the negligence of the corporation which owns the club and/or any affiliated companies and/or their respective agents and employees.
13. **DAMAGES TO FACILITIES:** Member agrees to pay an extra charge for damage arising from any careless use of equipment, or dropping of weights, etc. caused by member.
14. **PERSONAL PROPERTY:** The club, the corporation owning the club, and the agents and employees of both shall not be responsible for damaged lost or stolen articles of clothing or any other personal property of any member.
15. **AMENDING THE RULES:** The club reserves the right to amend or add to these rules and conditions and to adopt new rules and conditions as it may deem necessary for the proper management of the Club.
16. **WARRANTIES:** Member agrees that no warranties, representation, or agreements or merchantability, for a particular purpose, or otherwise, express, or implied were made to member except for those written therein or in writing, signed by an officer of the corporation owning the club.
17. **FACILITIES INCLUDED:** This membership includes use of all facilities of the club location shown on the face of this agreement excluding massage, and sun-tanning beds. Club may, from time to time, allow member to use other clubs related by ownership, but not contractually obligated to do so, not to continue nor do so even though such privileges shall be extended to member on one or more occasions. Towels are to be furnished by each member for his/her own use. The club reserves the right to add massage, towels, or any other services in the future and charge reasonable fees for such services.
18. **BABYSITTING:** Club may provide, in its sole discretion, babysitting services from time to time. Said services, if provided, are not to be viewed as part of member's contractual privileges. Said services may be entirely discontinued at the option of club, and hours, limitations conditions and terms of operation may be established or amended in the sole discretion of Club. Club may charge for such services, and may charge the amount of such charge, from time to time in its sole discretion.
19. **INCIDENTAL PROGRAMS AND SERVICES:** Member acknowledges that member is purchasing a membership in a physical facility. Club may provide, in its sole discretion, programs (such as dance exercise programs) facilities, services or equipment incidental or related to physical Club shall not be required to continue any particular programs, facilities, services, or equipment as part of its contractual obligations hereunder and may discontinue, change or modify the same in its sole discretion and absolute discretion, without recourse by member.
20. Smoking is not permitted in any part of the club, including the locker room area.
21. No members are allowed behind the front desk.
22. No members are allowed in the Pro Shop without supervision.
23. No alcoholic beverages or non-prescription drugs, including anabolic steroid are allowed on the premises of the club.
24. Weight plates must be racked on the weight racks after each use. Please DO NOT lean the weight plates against the equipment or lay them on the floor.
25. No chalk or baby powder is permitted in the workout area.
26. Weight belts must be removed before utilizing the equipment with signs reading "Please remove weight belts".
27. Lockers are available for your use while visiting our facility. However, lockers will not be provided. If you bring your own lock, you must remove it before you leave. If member's lock is left on a locker after the member has left the club, the lock will be subject to removal and Seller will not be obligated to replace the lock.
28. No p

Member

